

Section M - Evaluation Factors for Award

SECTION M - EVALUATION FACTORS FOR AWARD

M-1. BASIS FOR CONTRACT AWARD

M-1.1. This competitive best value source selection is conducted using the tradeoff source selection process in accordance with (IAW) Revolutionary FAR Overhaul (RFO) Part 15, Contracting by Negotiation and Department of Defense (DoD) Source Selection Procedures effective 20 August 2022. The Government will award one contract resulting from this solicitation to the responsible (IAW RFO Part 9) offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered.

M-1.2. The Government will utilize evaluation methodology that permits a tradeoff between technical and price factors. Technical is significantly more important than price. Technical Subfactors B and C are the only two Subfactors included in the Trade-Off. This may result in an award being made to a higher rated, higher priced offeror where the decision is consistent with the evaluation factors and the Source Selection Authority (SSA) determines that the technical superiority of the higher priced offeror outweighs the price difference. The Government reserves the right to award to other than the lowest proposed price. While the technical factor is determined to be significantly more important than price, price will contribute to the award decision. The greater the equality of proposals for technical factor, the more important price becomes in selecting the best value for the Government.

M-1.3. The Government will evaluate the minimum number of proposals for efficiency and to maintain adequate competition, as specified in this section. Upon receipt of the Technical and Price proposals, the Government will follow a two (2) step process as outlined below:

Step 1: Factor Evaluations. The Government will evaluate proposals as follows:

Technical Evaluation. The Government will evaluate the technical proposals of Offerors as specified in paragraph M-2.1.

Price Evaluation. The Government will evaluate the price proposals of Offerors as specified in paragraph M-2.2. Technically Unacceptable proposals may not be evaluated for price.

Step 2: Government Determinations. At the conclusion of Step 1, the Government reserves the right to award without negotiations but may conduct negotiations if the Government determines it is in the Government's best interest. The Government may make a final determination as to whether the offeror's proposal is "Acceptable" or "Unacceptable" based on the initial proposal submitted. Therefore, offerors are advised to submit proposals that are fully and clearly acceptable without additional information required. If the Government elects to open negotiations, the competitive range may include proposals rated as "Unacceptable" at the sole discretion of the Government.

M-1.4. The Government contemplates award of one contract resulting from this solicitation. However, the Government reserves the right not to award a contract, depending on the acceptability of proposal(s) submitted and the availability of funds.

M-1.5. Per RFO Clause 52.215-1(f)(4), the Government intends to award without negotiations. The Government may make a final determination as to whether the offeror's proposal is the best value solely based on the initial proposal as submitted. Accordingly, offerors are advised to submit initial proposals that are fully and clearly acceptable without additional information. Should the SSA determine that negotiations are necessary, a competitive range determination will be made prior to conducting negotiations. This range will be comprised of the most highly rated proposals based on the ratings of all tradeoff factors. The competitive range may include lesser rated proposals at the sole discretion of the Government.

M-1.5.1. The Contracting Officer will notify Offerors in writing if their proposals are excluded from the competitive range or otherwise eliminated from the competition IAW RFO 15.206. That notice shall state the basis for the determination and that a proposal revision will not be considered.

M-1.5.2. Evaluation Notices (EN) will be issued to Offerors in the Competitive Range. Formal responses to ENs and final proposal revisions (FPR) will be considered in making the source selection decision for award.

M-1.5.3. Final Proposal Revisions (FPRs) will be requested from each offeror in the competitive range at the conclusion of negotiations. Any revision or non-concurrence to contract terms and conditions submitted in the submitted FPR may not be

subject to further negotiation. This provision is not intended to restrict the offeror's opportunity to revise figures (e.g., prices, discounts, percentages, rates, etc.); rather, it is intended to preclude any misunderstandings by the Government which could result if new or revised terms and conditions are submitted in the FPR that have not been fully disclosed, discussed, and understood during negotiations. Hence, such new or revised terms and conditions are not solicited and, if submitted in the FPR, may render the offer unacceptable to the Government.

M-2. EVALUATION FACTORS.

M-2.1. FACTOR 1 - TECHNICAL

M-2.1.1. Offerors' proposals shall demonstrate a comprehensive understanding of the nature and scope of work required. The focus of the Technical Rating is on the offeror's ability to satisfactorily meet the evaluation criteria identified within each subfactor and subfactor aspect. The Government will not search for data to cure problems or address inconsistencies in an offeror's proposal. Technical will be rated using a methodology of Acceptable/Unacceptable Ratings for Subfactors A; and combined technical/risk rating for Subfactors B and C per Tables 1-4 listed below. Technical ratings will be assessed at the subfactor level; an overall factor-level rating will not be assigned. Proposals receiving an Unacceptable rating for Factors A may not receive further evaluation. Moreover, proposals rated Unacceptable in any Subfactor are not awardable and may not be included in the competitive range. Finally, all Subfactors are of equal importance.

- (a) Acceptable/Unacceptable Ratings. The Government will evaluate Subfactor A using an Acceptable or Unacceptable rating as defined in Table 1 and further explained under the subfactor. All criteria in this subfactor must be met to receive an Acceptable rating.
- (b) Combined technical/risk evaluations shall be utilized to evaluate Subfactors B & C as defined in Table 2 and the risk descriptions set forth in Table 3. The combined technical/risk rating in Table 2 includes consideration of risk in conjunction with the strengths, weaknesses, significant weaknesses, and deficiencies in determining technical ratings. In conducting the assessment, the Government will also consider the information provided in the proposal as to how the offeror will manage and mitigate risk. The technical rating evaluates the quality of the offeror's technical solution for meeting the Government's requirements. If an offeror's proposal demonstrates a material failure to meet a Government requirement, this is a deficiency in the offeror's proposal resulting in a Red/Unacceptable rating and the proposal is not awardable. The severity of the deficiency will determine if the offeror will be able to correct the deficiency through negotiations. To be eligible for award, all Subfactors must receive a minimum color rating of "Green/Acceptable." Table 4 further defines terminology contained within Tables 2 and 3.

Table 1 – Acceptable/Unacceptable Rating Descriptors

Terminology	Definition
Acceptable	Proposal meets the requirements of the solicitation and all criteria in the respective factor, subfactor, and/or aspect is met.
Unacceptable	Proposal does not meet the requirements of the solicitation and some or all of the criteria in the respective factor, subfactor, and/or aspect is not met.

Table 2 - Combined Technical/Risk Rating Method

Color	Rating	Description
Blue	Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Red	Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

Table 3 - Technical Risk Rating

Adjectival Rating	Description
Low	Proposal may contain weakness/weaknesses which have low potential to cause disruption of schedule, increased cost, or degradation of performance. Normal contractor emphasis and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a significant weakness or combination of weaknesses which may have a moderate potential to cause disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome any difficulties.
High	Proposal contains a significant weakness or combination of weaknesses which is likely to have high potential to cause significant disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will unlikely be able to overcome any difficulties.
Unacceptable	Proposal contains a deficiency or a combination of significant weaknesses that causes an unacceptable level of risk of unsuccessful performance.

Table 4 – Technical Evaluation Descriptors

Terminology	Definition
Significant Strength	An aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.
Strength	An aspect of an offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.
Weakness	A flaw in the proposal that increases the risk of unsuccessful contract performance. See RFO 15.001.
Significant Weaknesses	A flaw that appreciably increases the risk of unsuccessful contract performance. See RFO 15.001.
Uncertainty	Any aspect of a non-cost/price factor proposal for which the intent of the offer is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake).
Deficiency	A material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

M.2.1.2. Subfactor A: Technical Experience. Evidence of technical experience must demonstrate performing similar scope of work IAW L-6.3.1.(c) Furthermore, experience shall capture airlift performance that meets payload and distance requirements as described in L-6.3.2. (including sub-paragraphs). Finally, technical experience must demonstrate performing similar scope

of work for a minimum of 12 months within the last five (5) years preceding the date of issuance of this solicitation.

- (a) Any proposal that does not receive an acceptable rating for Subfactor A may not be evaluated under further Subfactors IAW M.2.1.1. and will not be eligible for award.

M-2.1.3. Subfactor B: Payload and Distance Requirements. Proposed approach must demonstrate a solution that will successfully address all of the following criteria. Additionally all of the following criteria are of equal importance.

- (a) The rotary aircraft and their crews are certified and qualified for both Night Vision Goggle (NVG) and Instrument Flight Rules (IFR) flight.
- (b) The capacity to transport, on each flight, any combination of passenger(s) and/or cargo totaling a minimum payload of 1,850 pounds.
- (c) The ability to have a minimum of one rotary aircraft positioned and available in each of the 5 Zones simultaneously at all times no later than at the conclusion of the transition period.
- (d) The aircraft's capability to transport the total payload for a range of 150 nautical miles nonstop, or up to 350 nautical miles with enroute refueling, in all Zones.

M-2.1.4. Subfactor C: Operations. Proposed approach must demonstrate a solution that will successfully address the two (2) aspects below. Additionally all of the following aspects are of equal importance.

M-2.1.4.1. Aspect 1 – Approach to Simultaneous Operations. Proposed approach must demonstrate a comprehensive plan that complies with Canadian safety requirements and properly equipped to perform bulk fuel transfer operations simultaneously at two locations in accordance with Appendix 5.

M-2.1.4.2. Aspect 2 – Bulk Fuel Transfer Capability and Equipment. In accordance with PWS Appendix 5, proposal must demonstrate a comprehensive approach to transferring, at a minimum, a capacity of 190 liters per minute, explosive proof diesel engine with suction, discharge hose, dry-break couplings, and other applicable equipment. Proposed approach must also demonstrate the following. Additionally all of the following are of equal importance.

- (a) The rotary aircraft assigned to the Bulk Fuel Transfer shall be capable of transporting a minimum of 1,500 liters of fuel per trip, in accordance with Appendix 5.
- (b) The rotary aircraft assigned to the Bulk Fuel transfer shall be capable of flying a distance of 150 nautical miles nonstop with personnel and equipment required for the mission.
- (c) The contractor will provide a minimum of two rotary aircraft and be able to demonstrate the ability and understanding to perform simultaneous refueling operations at two locations in accordance with Appendix 5 paragraph 1.1.
- (d) The contractor will provide a minimum of three (3) fuel transfer pumps, with a minimum capacity of 190 liters per minute, explosive proof diesel engine with hose dry-break couplings for each of the assigned fuel transfer teams in accordance with Appendix 5 paragraph 1.6.1.
- (e) The contractor will provide a minimum of two (2) fuel transfer hoses, 150Ft length of 1-1/2" hose with either 2" or 3" dry-break coupling connections for each assigned fuel transfer team.

M-2.2. FACTOR 2 - PRICE

M-2.2.1. Offerors who receive acceptable or better Technical Subfactor ratings in Factor 1 will be evaluated for Factor 2 - Price.

M-2.2.2. This source selection is conducted with the expectation of adequate price competition to ensure the awarded price is fair and reasonable. Thus, offerors are cautioned to present their best price proposal up front. The offeror's price proposal shall represent their best effort to respond to the solicitation requirements. The burden of proposal accuracy rests solely with the offeror.

M-2.2.3. Ratings will not be assigned for Factor 2 – Price. Price analysis will be performed using one or more of the

techniques defined in RFO 15.404-1 to ensure the Government receives a fair, reasonable, complete, and balanced price. Offerors whose total overall evaluated price (TOEP) is determined to be unreasonable, unbalanced, or incomplete may not be considered for award.

M-2.2.4. The techniques and procedures described under RFO 15.404-1 will be the primary means of accomplishing the price analysis, including reasonableness. Price reasonableness will be determined based upon comparison of the offerors' TOEPs. The price of each offeror will be evaluated on the TOEP, which will be determined by totaling all Contract Lines Item Numbers (CLINs) including transition, base year, option years and fifty percent (50%) of the last option period price to cover the option to extend services IAW RFO Clause 52.217-8. The Government has provided estimates for the cost reimbursable CLINs. All Cost Reimbursable (CR) CLINs are exclusive of indirect rates and profit/fee.

M-2.2.4.1. A price realism analysis will not be performed.

M-2.2.5. In addition to the analyses as described in RFO 15.404-1, proposals will be analyzed to identify any potential unbalanced pricing per RFO 15.404-6. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly over or understated as indicated by the application of price analysis techniques. Absent any issues related to the stated requirement, unbalanced pricing may pose an unacceptable risk to the government and may be a reason to reject an offeror's proposal.

M-2.2.6. A proposal is complete when all pricing data required in the RFP is provided in the format prescribed in this section and Section L, Instructions to Offerors. Submission of an incomplete proposal may result in rejection of the proposal.

M-2.2.6.1. Offerors shall include pricing in their proposal of fifty percent (50%) of the last option period price to cover the option to extend services IAW FAR Clause 52.217-8. Evaluation of this pricing and the option years shall not obligate the Government to exercise such options.

M-2.2.7. All CR line items represent those expenses to be reimbursed based on actual costs. These line items are not profit bearing, nor do they allow for additional markup (e.g., G&A, handling, OH).

M-2.2.7.1. The government has provided pre-established not to exceed (NTE) amounts for all CR CLINS. These pre-established amounts shall be included in the offeror's proposal and will be evaluated as part of the TOEP. Additional funding will be obligated to these CLINS if required during contract performance.

M-2.2.8. Offerors shall complete and submit the Schedule of Supplies or Services and Prices or Costs. Offeror shall insert the price elements (unit price and extended total) for all FFP and Optional CLINS for Transition, Base Year, and all Option Years. The unit price multiplied by the number of units shall equal the extended price of each CLIN. For ease of administration, the extended TOTAL should be rounded to whole dollar amounts before they are multiplied by the quantity. The unit price multiplied by the number of units shall equal the extended price of each CLIN. If submitted unit prices are not rounded to the nearest dollar, the Government will round the unit prices to whole dollar amounts at the time of contract award or modification. If the decimal is followed by 5, 6, 7, 8, or 9, the price will be rounded up to the nearest whole dollar. If the decimal is followed by 0, 1, 2, 3, or 4, the price will be rounded down to the nearest whole dollar.

M-2.2.9. Supporting price back-up data is not required at this time. In the event such data is required, an evaluation notice will be issued to the offeror(s) requesting such information, and in a format prescribed by the government.

M-2.2.10. Bid and Proposal Costs are not allowed, or for any modification after award for the duration of the contract.

M-2.2.11. Notice on the Use of the SPRS. The RFP, in Section L, DFARS Clauses Incorporated by Reference, includes DFARS provision 252.204-7024, Notice on the Use of the Supplier Performance Risk System (SPRS). DFARS 204.7603 provides for consideration of price risk and supplier risk if available in SPRS. For any services under this solicitation that do not have an associated Product Service Code (PSC) or Manufacturer CAGE Code with a Part Number or National Item Identification Number (NIIN), then the SPRS Item/Price Risk Report search will not provide any information. Therefore, offerors are advised that the evaluation of Factor 2 cannot utilize the Supplier Performance Risk System and (b) will not obtain nor consider risk assessments as detailed in DFARS 252.204-7024(c). Price evaluation will be conducted as otherwise specified in the RFP.